



OFFICIAL

Freedom of Information (FOI) request

Notice of Revised Decision under s 55G of the FOI Act

Reference: FOI/2022/045IC

To: Richard McLean

richarddrawsstuff@gmail.com

Cc: Office of the Australian Information Commissioner

foidr@oaic.gov.au

Dear Mr McLean

I refer to your request under the *Freedom of Information Act 1982* (the FOI Act) to the Department of the Prime Minister and Cabinet (the Department) on 7 February 2022, for the following:

I request all information government agencies hold on me please.

On 14 April 2022, the Department notified you of its decision to refuse your request under paragraph 24A(1)(b) of the FOI Act, on the basis that the Department had taken all reasonable steps to locate the documents you have requested and those documents do not exist.

On 28 March 2023, the Office of the Australian Information Commissioner (OAIC) notified the Department that you applied for an Information Commissioner (IC) review of the Department's decision. On 11 April 2023, the Department provided submissions to the OAIC, which explained that while the Department had found some material that may relate to you, there is insufficient information for it to be satisfied that there is a positive match between you and the material found.

On 15 August 2024, the OAIC advised the Department that it had liaised with you to obtain your residential addresses in New South Wales (in 2009) and Victoria (in 2012). The OAIC provided this information to the Department and requested the Department to consider issuing a revised decision under section 55G of the FOI Act, in light of the additional information.

The purpose of this letter is to provide you, under section 55G of the FOI Act, with a revised decision on your request for access.

Section 55G of the FOI Act

Paragraph 55G(1)(a) of the FOI Act provides that after an application is made to the IC for review, an agency or Minister may (at any time during IC review) revoke or vary an access refusal decision to favour the applicant by giving access to a document in accordance with the request.

Subsection 55G(2) of the FOI Act provides that the agency or Minister must notify the IC of the new decision (paragraph 55G(2)(a)) and the revised decision will be the decision under review (paragraph 55G(2)(b)).

Authorised decision-maker

I am authorised to make this revised decision in accordance with arrangements approved by the Department's Secretary under section 23 of the FOI Act.

Material taken into account

In reaching my decision I referred to the following:

- your FOI request;
- the additional information provided by the OAIC;
- the FOI Act; and
- the Guidelines issued by the Information Commissioner under section 93A of the FOI Act (the FOI Guidelines).¹

Documents in scope

I am satisfied that the Department holds five documents that meet the terms of your request. These documents are set out in the Schedule of Documents at Attachment A.

Revised decision and reasons

I have considered all the information available to me, and took into account the additional information provided by the OAIC. In light of this I have decided to grant access in full to the requested documents. Irrelevant material has been deleted under paragraph 22(1)(a)(ii) of the FOI Act.

My findings of fact and reasons for deciding that certain information is irrelevant is set out below.

Deletion of irrelevant matter under section 22

Section 22 of the FOI Act provides that if giving access to a document would disclose information that would be reasonably regarded as irrelevant to the request, it is possible for the Department to prepare an edited copy of the document, modified by deletions, ensuring that the edited copy would not disclose any information that would reasonable be regarded as irrelevant to the request.

¹ Guidelines issued by the Information Commissioner under section 93A of the FOI Act (FOI Guidelines).

On 16 February 2022, the Department advised you of its policy to exclude the personal and direct contact details of officers not in the Senior Executive Service (SES) and any Ministerial staff, as well as any person's signature, and the mobile or direct numbers of SES officers, which are contained in documents that fall within the terms of an FOI request. This category of information is identified as irrelevant and I am satisfied that those parts of the requested documents may be deleted under paragraph 22(1)(a)(ii) of the FOI Act.

There are also other parts of the requested documents that do not relate to you, and therefore fall outside the scope of your request. This category of information has also been identified as irrelevant material and deleted under paragraph 22(1)(a)(ii) of the FOI Act. This includes extracts of other media reports about other topics.

The remainder of documents is treated as relevant to your request and has been released to you under the FOI Act.

Review rights

The FOI Guidelines state that a revised decision does not automatically conclude the IC review. The revised decision will become the decision under review. The OAIC will generally consult the FOI applicant as to whether they wish to continue the IC review on the basis of the revised decision.²

Complaints

If you are unhappy with the way we have handled your FOI request, please let us know what we could have done better. If you are not satisfied with our response, you can make a complaint to the Australian Information Commissioner. A complaint to the IC must be made in writing. More information about complaints is available [here](#).³

If you wish to discuss any aspect of your requests, you can contact the FOI Section by email at foi@pmc.gov.au.

Yours sincerely



Laura Cameron
A/g Assistant Secretary
Legal Policy Branch
Department of the Prime Minister and Cabinet

8 October 2024

² FOI Guidelines [10.70].

³ <https://www.oaic.gov.au/freedom-of-information/your-freedom-of-information-rights/freedom-of-information-complaints>.